

Shankar Lal v. State of U.P. & 6 Others

Allahabad High Court · Division Bench · 6 October 2025 · Writ - C No. 28103 of 2023 · **Writ remains pending; liberty to move under Section 6.5 with a Rs 50,000 deposit; recovery stayed and existing supply protected; interim order extended**

HEADNOTE

A consumer's challenge to a recovery certificate dated 28.03.2023 for Rs 5,51,000 as electricity dues, on the ground that the bill cannot reflect consumption in a two-room EWS house, is not decided on merits. The licensee says an earlier demand of Rs 9,37,758 was a typographical error since rectified, and points to Section 6.5 of the U.P. Electricity Supply Code, 2005 for correction of the bill and to the Consumer Grievance Redressal Forum. On 22.08.2023 the Court permits the consumer to raise the grievance under Section 6.5 before the appropriate authority within three weeks, with an application for interim relief and a deposit of Rs 50,000 towards the dues; if he does, the Corporation must decide within one month. Recovery is stayed for two months and the supply already granted is not to be disconnected. The writ is listed and remains pending: later Division Benches, last on 06.10.2025, only extend that interim order. The correctness of the bill, the typographical-error plea, and the Forum route are not decided.

FACTUAL SUMMARY

Shankar Lal challenged, in Writ-C No. 28103 of 2023, a recovery certificate dated 28 March 2023 for Rs 5,51,000 as electricity dues. He lives in a two-room EWS house and said a bill of that size cannot reflect his consumption, the Corporation raising such bills irrespective of use. Counsel for respondent nos. 4 to 7 said an earlier demand of Rs 9,37,758 was a typographical mistake, since rectified to Rs 5,51,000, and that he could seek correction under Section 6.5 of the U.P. Electricity Supply Code, 2005, or approach the Consumer Grievance Redressal Forum.

On 22 August 2023 the Court let him raise that grievance before the appropriate authority within three weeks, with an interim-relief application and a deposit of Rs 50,000, the Corporation to decide within one month of filing. Recovery was stayed for two months and the existing supply was not to be disconnected. The writ was listed for 26 October 2023. Later Benches, last on 6 October 2025, only adjourned it and continued the interim order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Disputed electricity bill left to a Section 6.5 application while the writ remains pending; recovery stayed and supply protected

QUESTION

Where a consumer challenges a recovery certificate on an allegedly excessive electricity bill, and the licensee points to Section 6.5 of the Supply Code for correction of the bill, does the writ court decide the bill?

HOLDING

Not on merits. On 22 August 2023 the Court held that the petitioner can raise his grievance under what the order calls Section 6.5 of the U.P. Electricity Supply Code, 2005, before the appropriate authority within three weeks, together with an application for interim relief and a deposit slip of Rs 50,000 to be deposited towards the electricity dues. If he does so, the respondent Corporation must decide the application within one month of filing. Till two months from that order, recovery against the petitioner was stayed and the electric supply already granted was not to be disconnected, and the writ was listed on 26 October 2023. The bill of Rs 5,51,000 was not adjudicated. Later orders, through 6 October 2025, only adjourn the writ and continue the interim order. ¶ [order of 22.8.2023](#); [order of 6.10.2025](#)

QUALIFIER

Interlocutory direction of 22.8.2023 (Pritinker Diwaker, C.J. and Ashutosh Srivastava, J.). The writ was not disposed of. The stay of recovery and the bar on disconnection have been continued by later listing orders, last on 6.10.2025.

FLAG Source PDF concatenates eight order-sheets. The only reasoned order is 22.8.2023 (Pritinker Diwaker, C.J. and Ashutosh Srivastava, J.), unnumbered. Later sheets only adjourn and extend the interim: 20.11.2023 (Siddhartha Varma and Shekhar B. Saraf, JJ.; list 18.12.2023); 2.1.2024 and 24.1.2024 (Manoj Kumar Gupta, A.C.J. and Kshitij Shailendra, J.; three weeks); 20.2.2024 (Manoj Kumar Gupta and Kshitij Shailendra, JJ.; four weeks); 20.5.2025 (Salil Kumar Rai and Arun Kumar Singh Deshwal, JJ.; four weeks); 14.8.2025 (Shekhar B. Saraf and Praveen Kumar Giri, JJ.; four weeks); 6.10.2025 paras 1-2 (Prakash Padia and Vivek Saran, JJ.; list after six weeks, as prayed). Coram and date are the 6.10.2025 bench. The Court said 'Section 6.5', not a sub-clause; keyed to UP-2005::6.5. The Rs 50,000 deposit is not identified as Clause 6.5(b)(ii). No order between 20.2.2024 and 20.5.2025 is in this source. No precedent is cited. Catalog hits other than UP-2005::6.5, including CGRF-2007, the Electricity Act sections, and the criminal and Companies Act tags, are false positives; the Forum is named only in counsel's submission.

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the recovery certificate was not decided on merits and was not disposed of. The consumer was permitted to raise the bill grievance under Section 6.5 before the appropriate authority within three weeks, while the writ remained on the list. ¶ [order of 22.8.2023](#)

clause-6.5-statutory-remedy-disputed-bill The dispute over the bill of Rs 5,51,000, said by the licensee to be the rectified figure in place of Rs 9,37,758, was left to a Section 6.5 application. If filed, the Corporation must decide it within one month. The Court did not find the bill correct or excessive. ¶ [order of 22.8.2023](#)

bill-correction-clause-6.5 Counsel for respondent nos. 4 to 7 invoked Section 6.5 for correction of the bill. The Court adopted that route, requiring the application to be accompanied by a request for interim relief and a deposit of Rs 50,000 towards the dues. ¶ [order of 22.8.2023](#)

procedural-listing-no-construction After the 22.8.2023 directions, seven later orders only adjourn the writ and continue the interim stay of recovery and the protection against disconnection, last on 6.10.2025 for six weeks. Section 6.5 is named and not construed. ¶ [order of 20.11.2023](#); [order of 6.10.2025](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS AND QUANTUM OF THE RECOVERY CERTIFICATE DATED 28.03.2023 FOR RS 5,51,000, INCLUDING WHETHER CONSUMPTION IN A TWO-ROOM EWS HOUSE CAN SUPPORT THAT BILL
Left to the appropriate authority under Section 6.5 if the petitioner files within three weeks. The writ court made no finding. ¶ [order of 22.8.2023](#)

NOT DECIDED — WHETHER AN EARLIER RECOVERY OF RS 9,37,758 WAS A TYPOGRAPHICAL MISTAKE THAT THE DEPARTMENT HAS DULY RECTIFIED TO RS 5,51,000
Stated by counsel for respondent nos. 4 to 7. Not found as a fact. ¶ [order of 22.8.2023](#)

NOT DECIDED — WHETHER THE CONSUMER GRIEVANCE REDRESSAL FORUM, RATHER THAN THE SECTION 6.5 AUTHORITY, IS THE FORUM FOR THIS BILL DISPUTE
Raised by the licensee as a further remedy. The operative direction is only under Section 6.5. The Forum was not chosen or ruled out. ¶ [order of 22.8.2023](#)

NOT DECIDED — WHETHER THE DEPOSIT OF RS 50,000 IS THE PRE-DEPOSIT PRESCRIBED BY ANY SUB-CLAUSE OF SECTION 6.5
The Court required that sum, with the Section 6.5 application and an interim-relief application, as a deposit towards the dues. It did not cite Clause 6.5(b) or 6.5(b)(ii). ¶ [order of 22.8.2023](#)